

Acts of the General Assembly

CHAPTER 1

An Act to amend and reenact §§ 2.1-345, 4-4, 5.1-77, 5.1-125, 8-581.1, 8-653, 13.1-400.6, 13.1-519, 13.1-535, 15.1-53, 15.1-276, 15.1-277, 15.1-322, 15.1-324, 15.1-372, 15.1-670, 15.1-674, 15.1-677, 15.1-685, 15.1-850, 15.1-894, 15.1-1061, 15.1-1349, 17-116, 19.1-35, 19.1-346, 21-243, 22-29.5, 22-29.10, 22-151.1, 28.1-6, 30-14.2, 33.1-92, 38.1-54, 38.1-60, 38.1-104, 38.1-133, 38.1-279, 38.1-765, 39.1-7, 54-118, 56-64, 56-338.7, 56-338.71, 56-374, 58-404.1, 58-465.2, 58-597, 58-684, 58-824, 58-953, 58-956, 58-973 and 59.1-92, as severally amended, of the Code of Virginia, so as to conform internal cross-references within such sections to the appropriate references to the Constitution of Virginia and to other titles and sections which have been revised and recodified by the General Assembly of Virginia.

[S 3]

Approved February 3, 1971

Be it enacted by the General Assembly of Virginia:

1. That §§ 2.1-345, 4-4, 5.1-77, 5.1-125, 8-581.1, 8-653, 13.1-400.6, 13.1-519, 13.1-535, 15.1-53, 15.1-276, 15.1-277, 15.1-322, 15.1-324, 15.1-372, 15.1-670, 15.1-674, 15.1-677, 15.1-685, 15.1-850, 15.1-894, 15.1-1061, 15.1-1349, 17-116, 19.1-35, 19.1-346, 21-243, 22-29.5, 22-29.10, 22-151.1, 28.1-6, 30-14.2, 33.1-92, 38.1-54, 38.1-60, 38.1-104, 38.1-133, 38.1-279, 38.1-765, 39.1-7, 54-118, 56-64, 56-338.7, 56-338.71, 56-374, 58-404.1, 58-465.2, 58-597, 58-684, 58-824, 58-953, 58-956, 58-973 and 59.1-92, as severally amended, be amended and reenacted as follows:

§ 2.1-345. Agencies to which chapter inapplicable.—The provisions of this chapter shall not be applicable to deliberations of standing and other committees of the General Assembly, provided that when bills or other legislative measures are considered in executive or closed meetings of such committees, final votes thereon shall be taken in open meetings; unless such action is in conflict with the rules of the body of the General Assembly considering such bills or other legislative matters, under the provisions of ~~Sec. 47~~ *Article IV, Section 7*, of the Constitution of Virginia; legislative interim study commissions and committees, including the Virginia Code Commission; the Virginia Advisory Legislative Council and its committees; study committees or commissions appointed by the Governor; meetings of committees of the State Board of Education and committees appointed by the State Board of Education which are held for the purpose of making recommendations to the State Board of Education; boards of visitors or trustees of State-supported institutions of higher education; parole boards; petit juries; grand juries; and study commissions or committees appointed by the governing bodies of counties, cities and towns, provided that no committee or commission appointed by such governing bodies, the membership of which consists wholly of members of such governing body, shall be deemed to be study commissions or committees under the provisions of this section.

§ 4-4. Members and officers of Control Board.—(a) The Board shall consist of three members appointed by the Governor, subject to confirmation by the General Assembly, for a term of five years each, to run

from time to time for any or all of such purposes, including reimbursement of funds and the funding or refunding of existing indebtedness, in the manner prescribed by the Constitution of Virginia, the principal and interest of which bonds shall be payable solely from the revenue of such sewage disposal system, which bonds shall never be included in determining the power to incur indebtedness within the limitations prescribed by ~~section one hundred twenty-seven~~ *Article VII, Section 10*, of the Constitution of Virginia.

§ 15.1-324. How election called and held; notice of sale.—The calling and holding of the election on the question of the issuance of such bonds shall be governed by the provisions of §§ ~~15.1-666.23, 15.1-666.25 and 15.1-666.26~~ *15.1-180, 15.1-182 and 15.1-183* as to cities and towns, and of §§ ~~15.1-666.30 and 15.1-666.31~~ *15.1-187 and 15.1-188* as to counties. If such bonds are sold at public sale, the notice of sale may provide that the bidders shall name the rate or rates of interest to be borne by such bonds, not exceeding the maximum rate prescribed by the ordinance calling the election, to be expressed in a multiple or multiples of one fourth or one tenth of one per centum per annum.

§ 15.1-372. Acquisitions in connection with street changes.—Any city or town of the Commonwealth proposing to open or widen a street by taking a part of any lot or other subdivision of property in such manner that remnant thereof would, in the opinion of the council of the city or town, be so small or of such shape as to be unsuited for the erection of appropriate buildings thereon may, in its discretion, acquire by purchase, gift or condemnation the whole of such lot or other subdivision of property of the owner whose property is sought to be acquired in the proceedings and any such acquisition thereof is hereby declared to be for a public use, as the term public uses is used in ~~section fifty-eight~~ *Article I, Section 11*, of the Constitution of Virginia. Any such city or town may subsequently replat and dispose of the remnant of such property so acquired not used for street purposes in whole or in part, making such limitations as to the uses thereof as it may see fit. Nothing in this section shall be construed to give any city or town any power to condemn the property of any railroad company or public service corporation which they do not otherwise possess under existing law.

§ 15.1-670. Board of commissioners; election; terms; officers; powers and duties generally.—In every county adopting this plan, the legislative, executive and administrative powers theretofore exercised by the board of supervisors of such county and such as may be thereafter conferred by law shall be exercised by a board constituted of five members, to be known as the board of commissioners and hereinafter referred to as the board, elected for a term of four years; provided, however, that the county officers whose election by popular vote is provided for by ~~section one hundred and ten~~ *Article VII, Section 4*, of the Constitution, the trial justice, or county judge, and the school superintendent and school board of such county shall continue as provided by law with all the power, authority and duties conferred by law upon such officers, court and school board. With the exception of the officers hereinbefore mentioned, all other officers of such county shall be appointed by the board of commissioners. The board shall elect one of its members, who shall be designated as chairman, to preside over the meetings of the board. He shall possess all the rights and duties of a member of the board but shall have no veto power. The board shall be elected at large or by districts as may be determined by the voters of such county in the election provided for in this chapter. The board shall divide the administration of the county into departments and determine and prescribe the jurisdiction and duties of each department and the powers and duties of the officers and employees therein and make such rules and regulations for the conduct of each department as it may

deem desirable for the purpose of securing efficiency and economy in administration.

§ 15.1-674. County board; membership, terms, chairman, etc.; board to appoint county manager.—Under the county manager plan all of the legislative powers of the county, however conferred or possessed by it, shall be vested in a board of five members to be known as the county board. The members of the board shall be elected in the manner hereinafter provided and for terms of four years. The county board shall appoint the county manager, who need not be a resident of the county or of the State. The county board shall elect one of its members as chairman, who shall preside over its meetings. The chairman shall be elected by the board annually and any vacancy in the office shall be filled by the board for the unexpired term. The chairman shall have the same powers and duties as other members of the board with a vote but no veto and shall be official head of the county. With the exception of those officers whose election is provided for by popular vote in ~~section one hundred and ten~~ *Article VII, Section 4*, of the Constitution and the trial justice or county judge, members of the board shall be the only elective county officials. The county board shall be a body corporate and as such shall have the right to sue and be sued in the same manner as is now provided by law for boards of supervisors.

§ 15.1-677. Duties of county manager; compensation; appointment of officers and employees.—The administrative and executive powers of the county, including the power of appointment of all officers and employees whose appointment or election is not otherwise provided by law, are vested in an official known as the county manager, who shall be appointed by the county board at its first meeting or as soon thereafter as practicable. He shall receive such compensation as shall be fixed by the board. The officers whose election by popular vote is provided for in ~~section one hundred and ten~~ *Article VII, Section 4*, of the Constitution and the trial justice or county judge, the school board and the superintendent of schools shall not be subject to appointment but shall be selected in the manner prescribed by law. The heads of all departments other than those hereinbefore referred to and excepted from the provisions of this section shall be selected by the county board; provided that if a majority of the qualified voters voting in the election required by § 15.1-668 vote in favor thereof, then the heads of the several county departments, other than those hereinbefore referred to and excepted from the provisions of this section shall be appointed by the county manager.

§ 15.1-685. Abolition of offices and distribution of duties.—The board, by a majority vote of all the members elected, may abolish any board, commission, or office of such county except the school board, school superintendent and trial justice, and the officers elected by popular vote provided for in ~~section one hundred and ten~~ *Article VII, Section 4*, of the Constitution, and may delegate and distribute the duties, authority and powers of the boards, commissions, or offices abolished to the county manager or to any other officer of the county it may think proper. In the event of the abolition of any such board, commission, or office, those to whom the duties thereof may be delegated or distributed shall discharge all of the duties and exercise all of the powers and authorities of, and both they and the county for which they were appointed, or by whom they were employed, shall enjoy the immunities and exemptions from liability or otherwise that were enjoyed by the abolished boards, commissions, or offices, prior to the adoption of the county manager plan of government, except in so far as such duties, powers, authority, immunities and exemptions have been or hereafter may be changed according to law.

§ 15.1-850. Imposition and apportionment of assessments; delegation of authority.—A municipal corporation may impose on abutting landowners the assessments for local improvements provided for in Article